

SENATE No. 1263

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting pet safety aka Crawford's Law.

PETITION OF:

NAME:

Bruce E. Tarr

DISTRICT/ADDRESS:

First Essex and Middlesex

SENATE No. 1263

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 1263) of Bruce E. Tarr for legislation to promote pet safety aka Crawford's Law. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1126 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting pet safety aka Crawford's Law.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 272 of the General Laws, as appearing in the 2022 Official Edition is hereby
2 amended by inserting after section 77C the following section 77D:-

3 (a) A person who by willful, wanton, reckless, or negligent act causes the unnecessary or
4 unjustified death of a cat or dog shall be liable in damages for the fair monetary value of the
5 deceased animal to the owner of the animal, including, but not limited to, damages for the loss of
6 comfort, protection, companionship, other special damages, services of the deceased animal to its
7 owner; reasonable afterlife expenses of the deceased animal; court costs and attorney's fees; and
8 other reasonable damages resulting from the willful, wanton, reckless, or negligent act. Non-
9 economic damages shall have a cap value of \$30,000.00

10 (b) Damages under this section for unnecessary or unjustified death sustained by an
11 animal shall be recovered in an action of tort by the aggrieved, commenced within three years
12 from the date, of death or from the date when the aggrieved knew, or in the exercise of
13 reasonable diligence, should have known, of the factual basis for a claim of relief